

Amendment No. 1 to HB0447

Crawford
Signature of Sponsor

AMEND Senate Bill No. 261*

House Bill No. 447

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 21, Part 10, is amended by adding the following as a new section:

(a) As used in this section, "office" means the office of investigations and conduct created in subsection (b).

(b) There is created the office of investigations and conduct that is administratively attached to the board.

(c) The executive director shall appoint a director of investigations, subject to approval by the joint government operations committee, who shall serve as the chief administrative officer of the office.

(d)

(1) The director of investigations shall appoint:

(A) A special agent in charge for each grand division;

(B) Special agents to serve under the special agents in charge;

(C) For each correctional facility managed by the department:

(i) An institutional investigator;

(ii) A correctional sergeant;

(iii) A correctional corporal; and

(iv) A disciplinary board sergeant; and

(D) An administrative assistant for the office.

(2) The director of investigations, in making appointments pursuant to subdivision (d)(1), shall make such appointments from among existing employees of the office of investigations and conduct, and prison operations, within the department of correction. The department of correction shall transfer such employees to the board.

(e) The director of investigations, special agents in charge, and all special agents of the office must be fully commissioned law enforcement officers in this state with authority to carry firearms on or off duty, with full arrest authority for any criminal violation, and have full authority to investigate any incident, violation of department policy, or crime inside any correctional facility in this state, wherever inmates are housed or incarcerated, or wherever department employees are employed, including department regional offices, the department training academy, and offices of probation and parole. The director of investigations, special agents in charge, and special agents of the office have unlimited access to all department records of any kind, physical or digital, including personnel, business, and all inmate records, including medical records of inmates.

(f) All employees of the department shall comply with a request from the office during an investigation by the director of investigations, a special agent in charge, a special agent, or an institutional investigator.

(g) The director of investigations, special agents in charge, and special agents of the office shall participate in annual law enforcement training courses each calendar year appropriate to the person's rank and responsibility and maintain POST certification.

(h) Institutional investigators have full investigative authority at the correctional facility in which they are assigned and shall maintain an office in the correctional facility. An institutional investigator has unlimited access to any area inside or around the curtilage of all properties designated for usage by the department, and unlimited access to all department physical or digital records of any kind, including personnel, business, and all inmate records, including medical records.

(i) Correctional sergeants and corporals of the office shall serve as internal affairs staff for the institutional investigator at each correctional facility and have the same investigative authority as the institutional investigator.

(j) Each disciplinary board sergeant shall oversee the inmate disciplinary process at each prison, conduct disciplinary hearings, and issue a monthly report of all inmate disciplinary activities to the board. There must be a fully equipped office at each prison for the disciplinary board sergeant.

(k) The office shall prepare an annual report on the activities of the office. The board shall publish the report on the board's website and shall submit the report to the governor, the speakers of the senate and the house of representatives, and the chairs of the committees of the senate and the house of representatives having jurisdiction over correction matters.

(l) This section does not apply to a facility at which a private prison contractor has contracted with the commissioner of correction to provide correctional services pursuant to chapter 24 of this title.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.